

25STCV18093 25STCV18093

County: los-angeles

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Case Number: 25STCV18093 Hearing Date: August 6, 2026 Dept: 735

Jackson v. Los Angeles County Office of
Education

Defendant LACOE's Demurrer to First Amended
Complaint and Motion to Strike

BACKGROUND

This is an employment action. On July 24, 2025, Plaintiff Gregory D. Jackson filed the operative first amended complaint against Defendant Los Angeles County Office of Education ("LACOE"), asserting causes of action for (1) breach of contract; (2) violation of Labor Code § 1102.5; (3) Retaliation under Section 504 of the Rehabilitation Act; (4) denial of procedural due process; and (5) racial discrimination in violation of FEHA.

DISCUSSION

Demurrer

Government Claims Act Compliance

Defendant demurs to the entire complaint on the ground that Plaintiff failed to comply with the Government Claims Act filing requirements. Actions against public entities are governed by the Government Claims Act, which requires those wishing to sue a public entity for money or damages to first present a written claim for damages to that entity within six months after the cause of action accrues. (Gov. Code §§ 905, 911.2.)

Plaintiff

claims in his FAC that he served his claim on the wrong entity, the County of Los Angeles, instead of his employer, LACOE. (FAC, p. 4, Ins.117-121.) The FAC also states that, months later, Plaintiff submitted a second claim which was denied by LACOE. (Id.) However, Plaintiff did not submit a claim to LACOE and LACOE did not deny Plaintiffs claim, instead, Plaintiff filed a request to file a late claim (not an actual claim) with LACOE on February 18, 2025, and the request to file a late claim was denied, as shown by Exhibit E. (F AC, Exh. E, p. 70.) Accordingly, Defendant asserts Plaintiff has not complied with the Government Claims Act as his request to file a late claim was denied and he has never, in fact, filed a claim with LACOE that was denied.

As

Plaintiff has failed to allege compliance with the claim filing requirements for suit against a public entity, the demurrer to the FAC is sustained. The Court need not address the individual causes of action as compliance must be satisfied before Plaintiff may state any claim against Defendant.

Leave

to Amend

On

July 8, 2026, Plaintiff filed an "opposition" to the demurrer that requests leave to amend and attaches a proposed second amended complaint. The filing states that it has addressed the deficiencies of the government claim filing and the deficiencies of the causes of action themselves. In a "notice of non-opposition," Defendant requests the Court not to consider this filing as it is not a true opposition, to deem the demurrer and motion to strike unopposed and to sustain the demurrer without leave to amend.

The

Court will allow leave to amend as Plaintiff has requested it and provided reasons for its necessity.

Motion to Strike

As the Court has sustained Defendant's demurrer to the FAC in its entirety, the motion to strike is denied as moot.

CONCLUSION

The Court sustains Defendant's demurrer.

The Court denies Defendant's motion to strike as moot.

Plaintiff to file and serve a second amended complaint within 30 days of notice of ruling. Defendant to file and serve a response within 30 days thereafter.

Defendant shall give notice.